

ASCII MASTER FLOW - PANEL 1/12: CONCEPT, HISTORY AND INSTITUTIONAL FIREWALL

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CENTRAL QUESTION: How can recruitment resist patronage yet remain representative and accountable?

1853 competitive turn -> 1919 statutory provision -> first PSC, 1 October 1926

-> Government of India Act 1935 federal/provincial/joint design -> Constitution, 26 January 1950.

PSC = constitutional exam/advice institution; government = posts/rules/appointment;

court = legality review. UPSC/SPSC/Joint PSC != SSC != statutory recruitment board.

ANSWER LINE: constitutional status protects process, not a monopoly over personnel administration.

ASCII MASTER FLOW - PANEL 2/12: ARTICLE 315 FEDERAL FORMS

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315(1): Union Commission + Commission for each State, subject to Article 315.
315(2): State legislative resolutions -> Parliament may create Joint PSC by law.
315(3): law supplies appointment/incidental/consequential provisions.
315(4): Governor request + President approval + UPSC agreement -> serves State needs.
315(5): references adapt to the Commission serving the matter.
TRAP: Joint PSC, UPSC-for-one-State and joint recruitment are three different devices.
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ASCII MASTER FLOW - PANEL 3/12: ARTICLE 316 COMPOSITION AND TENURE

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Appointment: President -> UPSC/Joint; Governor -> SPSC.

As nearly as may be one-half: ≥ 10 years government office; qualifying old service counts.

Strength not constitutionally fixed; no universal degree/civil-service qualification.

Term: six years OR age ceiling, earlier event: UPSC 65; SPSC 62; Joint PSC 62.

Resignation: President for UPSC/Joint; Governor for SPSC.

316(1A), Fifteenth Amendment 1963: competent authority appoints acting Chair.

316(3): no reappointment to same office after term expiry.

ASCII MASTER FLOW - PANEL 4/12: ARTICLE 317 REMOVAL AND SUSPENSION

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Misbehaviour: President reference -> Supreme Court inquiry -> report -> President order.

Direct President grounds: insolvency | paid outside employment | qualifying infirmity.

Deemed misbehaviour: prohibited interest/participation in government contract or benefit.

After reference: President suspends UPSC/Joint; Governor suspends SPSC.

Mehar Singh Saini (2010): proved manipulation/integrity failures justified removal finding.

TRAP: Governor appoints SPSC but never finally removes its member.

ASCII MASTER FLOW - PANEL 5/12: ARTICLES 318, 319 AND 322 SAFEGUARDS

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318: President regulates Union/Joint members/staff; Governor regulates SPSC.
Member conditions cannot be varied to disadvantage after appointment.
319: UPSC Chair none; SPSC Chair -> UPSC Chair/member or other SPSC Chair;
UPSC member -> UPSC Chair/SPSC Chair; SPSC member -> UPSC Chair/member or SPSC Chair.
322: UPSC expenses charged on CFI; SPSC expenses charged on State Consolidated Fund.
Joint finance: check parliamentary creating law under 315(3); do not assume CFI.
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ASCII MASTER FLOW - PANEL 6/12: ARTICLE 320 EXAMINATIONS AND AIS INTERFACE

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320(1): examinations for appointments to respective Union/State services.

Civil Services Examination = UPSC interface; Article 312/AIS law governs services.

Government/DoPT: posts, rules, cadre, allocation, training and appointment.

320(2): UPSC helps 2+ requesting States with joint scheme for specially qualified services.

SSC/boards conduct recruitment assigned by resolution/statute/rules.

TRAP: recommendation/examination is not the final appointment act.

ASCII MASTER FLOW - PANEL 7/12: ARTICLE 320(3) CONSULTATION CATALOGUE

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- (a) methods of recruitment.
 - (b) appointment/promotion/transfer principles + candidate suitability.
 - (c) disciplinary matters, memorials and petitions.
 - (d) qualifying legal-cost claims for official-duty defence.
 - (e) injury-pension claims arising from service.
- CVC/CVO handles covered vigilance; department decides; PSC consults where required.

ASCII MASTER FLOW - PANEL 8/12: EXCLUSIONS, RESERVATION AND LATERAL ENTRY

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320(4): no required consultation on Article 16(4) manner or Article 335 claims.

PSC still administers reservation roster/rules in assigned selection.

Proviso 320(3): President/Governor exemption regulations -> legislative laying/modification.

15 March 2024 Union amendment: specified posts/methods up to level 13A;

not a universal lateral-entry exemption.

Lateral/contract: post -> rules -> method -> equality/reservation -> consultation -> appointment.

State regulations vary; never export one State or Union rule nationally.

ASCII MASTER FLOW - PANEL 9/12: ARTICLES 321 AND 323

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321: Act of Parliament/State legislature may extend functions to services/public bodies.

323 UPSC: report -> President -> Parliament + rejected-advice memorandum/reasons.

323 SPSC: report -> Governor -> State legislature + memorandum/reasons.

323 Joint: State-specific report to each served State's Governor -> legislature.

Manbodhan Lal (1957): consultation directory; non-consultation alone not invalidating.

Jatinder Kumar (1984): recommendation advisory; government retains appointment role.

ASCII MASTER FLOW - PANEL 10/12: CASE LAW AND JUDICIAL REVIEW

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Ashok Kumar Yadav (1985): recusal for bias risk; interview weight reviewable.

Shankarsan Dash (1991): select-list inclusion ordinarily creates no appointment right.

K. Manjusree (2008): no undisclosed criterion introduced after process begins.

Mehar Singh Saini (2010): Article 317 inquiry enforces constitutional integrity.

Tej Prakash Pathak (2024): rule stability and non-arbitrariness.

Court reviews jurisdiction/rules/equality/bias; does not ordinarily re-interview or re-rank.

ASCII MASTER FLOW - PANEL 11/12: INTEGRITY AND INDEPENDENCE LIMITS

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Safeguards: removal security + no adverse conditions + post-office bars + finance + reports.

Limits: executive appointment + vacancies + staff dependence + delay + opaque vendors/interviews.

Integrity: creation -> custody -> centre/CBT -> identity -> logs -> report -> remedy.

Public Examinations Act/Rules 2024 expressly cover UPSC-listed central exams.

SPSC coverage requires applicable law/notification; avoid universal claim.

Technology supports evidence; it cannot replace reasoned, proportionate remedies.

ASCII MASTER FLOW - PANEL 12/12: TRAPS, REFORMS AND ANSWER SPINE

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TRAPS: Governor appoints SPSC/President removes | Union 65 vs State+Joint 62

| advice != appointment | reservation policy != PSC ownership.

REFORMS: member criteria | timely vacancies | professional staff | recusal | secure vendors

-> reasoned results/grievances -> consultation matrix -> stronger Article 323 scrutiny.

ANSWER: define -> exact Article/actor -> claim -> named evidence -> analysis -> qualification

-> precise reform -> verdict: merit + representativeness + procedural fairness.

CONCLUSION: independent, capable, transparent and correctable recruitment earns trust.